

Case	Title / Nature of Case
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2:00 PM LINE 1

23-CIV-06152 JOSE ROJAS REYNAGA VS. JOSE PRADO, ET AL

JOSE ROJAS REYNAGA
JOSE PRADO

HAROUT MESSRELIAN
ELISA RHEIN MARCALETTI

Defendants' Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING:

For the reasons stated below, Defendants Jose and Ana Prado's ("Defendants") Motion for Summary Judgment ("MSJ"), filed March 30, 2026, is DENIED. (Code Civ. Proc., § 437c.) Defendants' alternative Motion for Summary Adjudication ("MSA") is GRANTED IN PART and DENIED IN PART.

As to Causes of Action Nos. 1-9 and 16-18, the MSA is DENIED. As to Causes of Action Nos. 10-15, the MSA is GRANTED. As to Plaintiff's request for punitive damages, the MSA is GRANTED.

PLAINTIFF'S AUG. 24, 2026 OBJECTIONS TO EVIDENCE ARE RULED UPON AS FOLLOWS:

- Objection No. 1 is **SUSTAINED** as to statements concerning what Defendant's spouse purportedly did or said, for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection No. 2 is **SUSTAINED** for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection Nos. 3-5 are **OVERRULED**.
- Objection No. 6 is **SUSTAINED** for lack of foundation and personal knowledge. (Evid. Code, § 702.)
- Objection No. 7 is **SUSTAINED** on hearsay grounds.
- Objection Nos. 8-9 are **OVERRULED**.

DEFENDANTS' SEPT. 4, 2026 OBJECTIONS TO EVIDENCE ARE RULED UPON AS FOLLOWS:

- Objection Nos. 1-17 are **OVERRULED**. The objections go to weight rather than admissibility.
- Objection No. 18 is **SUSTAINED** as to the statement that Defendants watched Plaintiff through cameras, for lack of foundation. (Evid. Code, § 702.) The objection is otherwise **OVERRULED**.
- Objection Nos. 19-33 are **OVERRULED**. The objections largely go to weight rather than admissibility; alleged statements by Defendants, when offered against them, are not made inadmissible by the hearsay rule. (Evid. Code, § 1220.)

BACKGROUND

Plaintiff Jose Rojas Reynaga's First Amended Complaint ("FAC"), filed June 27, 2024, alleges that from approximately 2007 through 2022, Plaintiff performed gardening, landscaping, and other tasks at properties owned by Defendants Jose and Ana Prado. Plaintiff alleges that on January 7, 2022, he was injured while moving furniture for Defendants and thereafter stopped working for them. Plaintiff filed this action in 2023, alleging violations of the California Labor Code and the California Fair Employment and Housing Act ("FEHA"), among other claims. The FAC asserts 18 causes of action:

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- 1) FAILURE TO COMPENSATE FOR ALL HOURS WORKED (Lab. Code);
 - 2) FAILURE TO PAY MINIMUM WAGES (Lab. Code);
 - 3) FAILURE TO PAY OVERTIME (Lab. Code);
 - 4) FAILURE TO PROVIDE ACCURATE ITEMIZED WAGE STATEMENTS (Lab. Code);
 - 5) FAILURE TO PAY WAGES WHEN EMPLOYMENT ENDS (Lab. Code);
 - 6) FAILURE TO PAY WAGES OWED EVERY PAY PERIOD (Lab. Code);
 - 7) FAILURE TO PROVIDE REST BREAKS (Lab. Code);
 - 8) FAILURE TO PROVIDE MEAL BREAKS (Lab. Code);
 - 9) FAILURE TO REIMBURSE BUSINESS EXPENSES (Lab. Code);
 - 10) DISCRIMINATION ON THE BASIS OF DISABILITY IN VIOLATION OF FEHA;
 - 11) FAILURE TO ACCOMMODATE DISABILITY IN VIOLATION OF FEHA;
 - 12) FAILURE TO ENGAGE IN INTERACTIVE PROCESS TO DETERMINE REASONABLE ACCOMMODATION IN VIOLATION OF FEHA;
 - 13) RETALIATION IN VIOLATION OF FEHA;
 - 14) FAILURE TO PREVENT DISCRIMINATION AND RETALIATION IN VIOLATION OF FEHA;
 - 15) WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;
 - 16) NEGLIGENCE PURSUANT TO LABOR CODE SECTIONS 3706 AND 6403;
 - 17) NEGLIGENCE;
 - 18) VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200.

Defendants move for summary judgment or, alternatively, summary adjudication of all 18 causes of action and Plaintiff's request for punitive damages.

LEGAL STANDARD ON SUMMARY JUDGMENT/ADJUDICATION

A motion for summary judgment must be granted if the papers show no triable issue of material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant meets its initial burden by showing that one or more elements of a cause of action cannot be established or that a complete defense exists. (Id., subd. (p)(2).) If the defendant meets that burden, the burden shifts to the plaintiff to show a triable issue of material fact as to the cause of action or defense. (Ibid.) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Pasadena Metro Blue Line Construction Authority v. Pacific Bell Telephone Co.* (2006) 140 Cal.App.4th 658, 663.)

Because summary judgment deprives the opposing party of a trial, the evidence is viewed in the light most favorable to the opposing party, and reasonable inferences are drawn in that party's favor. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, 856.) The Court does not weigh competing evidence or resolve credibility disputes. Its task is to determine whether a triable issue of material fact exists. (See *Assilzadeh v. California Federal Bank* (2000) 82 Cal.App.4th 399, 409.)

THE EVIDENCE RAISES A TRIABLE ISSUE AS TO WHETHER PLAINTIFF WAS AN INDEPENDENT CONTRACTOR OR EMPLOYEE; THE MSA IS THEREFORE DENIED AS TO CAUSES OF ACTION NOS. 1-9 AND 16-18

Whether a worker is an employee or an independent contractor may present a question of fact; if the material facts permit only one reasonable inference, the issue may be decided as a matter of law. (*Brose v. Union-Tribune Publishing Co.* (1986) 183 Cal.App.3d 1079, 1081; *Torres v. Reardon* (1992) 3 Cal.App.4th 831, 838.)(*Torres v. Reardon* (1992) 3 Cal.App.4th 831, 838)

In *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 957, the California Supreme Court adopted the "ABC" test for determining employee status for claims governed by the applicable wage order. Under that test, a worker is presumed to be an employee unless the hiring entity establishes each of the following: "(A) that the worker is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact; and (B) that the worker performs work that is outside the usual course of the hiring entity's business; and (C) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed." (Ibid.) The parties proceed on the premise that the ABC test governs the classification issue presented by this motion.

Because a hiring entity's failure to satisfy any one of the three parts of the ABC test establishes employee status for purposes of the wage order, a court may consider the prongs in any order. (*Dynamex*, supra, 4 Cal.5th at p. 963.) The Court addresses all three prongs.

NO TRIABLE ISSUE AS TO PRONG B ("THAT THE WORKER PERFORMS WORK THAT IS OUTSIDE THE USUAL COURSE OF THE HIRING ENTITY'S BUSINESS")

There is no triable issue as to Prong B, which asks whether the worker performs work outside the usual course of the hiring entity's business. (*Dynamex*, supra, 4 Cal.5th at p. 959.) Defendants are retired individuals who hired Plaintiff to perform maintenance and related tasks on their own properties. Plaintiff admits that both Defendants are retired. (UMF 39, 41.) There is no evidence that Defendants operated a business involving gardening, landscaping, moving furniture, property management, property maintenance, or the other tasks Plaintiff performed. Defendants were maintaining their own properties rather than operating a business in which Plaintiff's services formed part of the usual course. Defendants therefore satisfy Prong B.

NO TRIABLE ISSUE AS TO PRONG C ("THAT THE WORKER IS CUSTOMARILY ENGAGED IN AN INDEPENDENTLY ESTABLISHED TRADE, OCCUPATION, OR BUSINESS OF THE SAME NATURE AS THE WORK PERFORMED")

There is no triable issue as to Prong C. The record shows that Plaintiff operated an independent gardening and landscaping business, including during the final approximately two-year period in which Defendants were his only clients. *Dynamex* identifies facts such as advertising, offering services to other customers, and other steps demonstrating an independently established business as relevant to Prong C. (*Dynamex*, supra, 4 Cal.5th at pp. 962-963.) Here, Plaintiff operated "GENERAL GARDENING SERVICES" for approximately 17 years. (Plt.'s Decl., ¶ 3.) He previously had multiple customers; used business letterhead and invoices identifying Defendants as "Customers"; maintained a business address; used business cards and flyers; advertised on his truck; supplied his own tools and equipment; and hired, negotiated pay for, and paid his own workers or helpers. (See Plt.'s Decl., ¶ 3; Plt.'s Dep. Tr. at 13-17, 19, 25-27, 39, 74, 76-77, 80, 104; UMF 11-12, 24; Plt.'s responses to SROGs 32, 34 & 39.)

Plaintiff also testified that he continued operating under his business name through the final day he worked for Defendants. (Plt.'s Dep. Tr. at 39.)

The record differs from *Garcia v. Border Transportation Group, LLC* (2018) 28 Cal.App.5th 558, 570, where the hiring entity failed to show sufficiently that the worker was actually engaged in an independently established business. Here, the evidence establishes an existing business through the date of Plaintiff's injury. Defendants therefore satisfy Prong C.

THE EVIDENCE RAISES A TRIABLE ISSUE AS TO PRONG A ("THAT THE WORKER IS FREE FROM THE CONTROL AND DIRECTION OF THE HIRING ENTITY IN CONNECTION WITH THE PERFORMANCE OF THE WORK, BOTH UNDER THE CONTRACT FOR THE PERFORMANCE OF THE WORK AND IN FACT")

Prong A presents the closest issue because portions of Plaintiff's testimony concerning "control and direction" conflict with other portions of the record. On one hand, Plaintiff testified that Defendants generally did not determine the manner in which he performed tasks; rather, he decided how to perform the work, and Defendants reviewed the completed work.

Q: When you did projects at the Prados, how did they supervise you?

A. They would supervise me. When I had finished my job, when I told them I had finished my job, they would go over and check to see how everything was.

Q. So they assigned you a job, and then you had to figure out how to do it, and then afterwards they checked the work?

A. That is right.

This testimony weighs strongly against Plaintiff's contention that Defendants controlled the manner in which he performed his work. Other evidence also supports independent-contractor status:

- Plaintiff operated his own business the entire time he worked for Defendants;
- Plaintiff determined or negotiated the price for each job. (Plt.'s Dep. Tr. at 15-16, 19.)
- Plaintiff testified that he determined how to complete each job and Defendants reviewed the completed work. (Plt.'s Dep. Tr. at 80.)
- When helpers were needed, Plaintiff found them, negotiated their pay, and paid them directly; Defendants did not pay them. (Plt.'s Dep. Tr. at 16-17, 26-27, 80; Plt.'s response to SROG 34.) Plaintiff referred to those helpers as "my workers."
- After each job was completed, Plaintiff prepared an invoice on his business' letterhead and sent the invoice to Defendants for payment;
- Plaintiff supplied the tools and materials and retained his tools after he stopped working for Defendants. (Plt.'s Dep. Tr. at 78; Plt.'s Decl., ¶ 3.)

That evidence is strongly indicative of an independent-contractor relationship.

On the other hand, Plaintiff points to evidence supporting greater control by Defendants:

- Plaintiff states that Defendants determined his schedule, including the days and hours he worked. (Plt.'s Dep. Tr. at 14; Plt.'s Decl., ¶ 7.)
and they decided how much time I worked.")
- Plaintiff states that Defendants sometimes required him to work on days he considered "off days," under threat of losing the work. (Plt.'s Decl., ¶¶ 7-8, 25; Plt.'s Dep. Tr. at 82.)
- Plaintiff also testified that, under threat of losing his job, he performed tasks outside what he considered the ordinary scope of his gardening business, including cleaning horse stalls, moving furniture, making purchases, assembling equipment and displays, and washing cars. (See Plt.'s Dep. Tr. at 14-15, 25-26, 74, 76-77; Plt.'s responses to SROGs 32 & 39; Plt.'s Decl., ¶¶ 9-10.)
- Most significantly for the injury at issue, Plaintiff testified that Ana Prado instructed him to move a heavy couch on a day he otherwise would not have worked and restricted him to one helper despite his request for additional help. (Plt.'s Dep. Tr. at 56-57, 79, 82, 86-88; Plt.'s Decl., ¶¶ 24-25.)

The evidence concerning control therefore conflicts. Although portions of Plaintiff's testimony may be difficult to reconcile with the evidence that he hired and paid his own helpers, the Court may not resolve those credibility questions on summary judgment.

"I had no control over [Plaintiff's] schedule or any input into who he hired as General Garden Service's employees."

Defendants deny controlling Plaintiff's schedule or the workers he hired. (Ana & Jose Prado Decls., ¶ 10.) The direct conflict between that evidence and Plaintiff's account creates a triable issue.

On summary judgment, the Court may not reject Plaintiff's testimony merely because Defendants' evidence appears more persuasive. Credibility determinations are for the trier of fact.

Viewing the evidence in the light most favorable to Plaintiff and drawing reasonable inferences in his favor, the Court concludes that a triable issue exists as to Prong A of the ABC test. Accordingly, a triable issue remains as to whether Plaintiff was an employee or an independent contractor.

THE MSA IS GRANTED AS TO CAUSES OF ACTION NOS. 10-15 (FEHA-BASED CLAIMS) BECAUSE THE EVIDENCE DOES NOT RAISE A TRIABLE ISSUE THAT DEFENDANTS REGULARLY EMPLOYED FIVE OR MORE PERSONS

FEHA defines an "employer," as relevant here, to include a person "regularly employing five or more persons." (Gov. Code, § 12926, subd. (d).) The Supreme Court has recognized that FEHA's enforcement provisions for discrimination claims generally apply only to employers meeting that threshold. (*Jennings v. Marralle* (1994) 8 Cal.4th 121, 130.) The implementing regulation defines "regularly employing" to include employing five or more individuals for any part of the day on which the alleged unlawful conduct occurred or employing five or more employees on a regular basis. (Cal. Code Regs., tit. 2, § 11008.) Cal. Code Regs., tit. 2, § 11008

There is no dispute that Defendants are retired. (UMF 39, 41.) They offer evidence that although they paid Plaintiff and other persons to perform maintenance work on their properties, they did not regularly employ five or more persons. Plaintiff argues that a triable issue exists because several persons at times worked at Defendants' properties.

Plaintiff has not identified by full name any person, other than himself, whom he contends was employed by Defendants. (See Plt.'s Dep. Tr. at 17.) That fact is not dispositive, but it underscores the limited evidentiary record concerning the alleged employment relationship of the other workers.

Plaintiff relies on deposition testimony, his declaration, and paragraph 6 of the FAC to argue that other persons regularly assisted with work at Defendants' properties. The unverified FAC is not evidence. The cited testimony and declaration do not establish that Defendants regularly employed five or more persons.

The unverified FAC does not constitute evidence on summary judgment. In any event, paragraph 6 does not identify workers other than Plaintiff as employees of Defendants.

The only relevant cited portions of Plaintiff's deposition testimony, and Plaintiff's declaration, appear to be following:

- Plaintiff's depo. Tr. at 72:

Q: And the workers that worked with you at the Prados, you hired those people. Correct?

A: Sometimes Ana would tell me that I had to take workers. So I had to look for them because she would tell me. She would order me that she needed people.

Q: And who paid those workers?

A: I did from my money.

Q: Did the workers work for your company?

A: They worked at Ana's house.

Q: Yes. But you paid them. So I'm trying to figure out if the workers worked for you or your company.

A: Yes, they worked for me, and I would pay them.

- Plaintiff's depo. Tr. at 114:

Q: I think -- I'm not sure if we asked this before, but did you consider your helpers to be employees of Yours?

A. It depended. When Ana asked me to take employees, they were her employees. But when I would go ask for their help, then they were my employees, and I was responsible for them.

- Plaintiff's Decl., ¶ 16:

Ana Prado decided how many workers were needed at the properties. She would tell me that she needed people, and I would bring the number of workers she asked for. I did not decide how many workers came. The workers I brought at her direction worked at the Prados' properties, on the tasks Ana Prado assigned, and under her direction. My understanding was that they were her employees.

- Plaintiff's Decl., ¶ 17:

Over the years I also recruited helpers of my own through people I knew. Those helpers agreed on their rates with me, and I paid them myself.

- Plaintiff's Decl., ¶ 18:

Including myself, there were regularly four to five people performing work at the Prados' properties.

Even viewing the evidence favorably to Plaintiff, a reasonable trier of fact could not conclude on this record, without speculation, that Defendants regularly employed five or more persons during the relevant period. Plaintiff testified that he recruited helpers, negotiated their pay, and paid them himself. (Plt.'s Dep. Tr. at 72; Plt.'s Decl., ¶ 17.) His statement that he understood certain helpers to be Defendants' employees does not supply evidence of an employment relationship sufficient to satisfy FEHA's five-person threshold.

Accordingly, Plaintiff's evidence does not support a reasonable inference that Defendants regularly employed five or more persons during the relevant period. The MSA is **GRANTED** as to Causes of Action Nos. 10-15.

THE MOTION FOR SUMMARY ADJUDICATION IS DENIED AS TO THE NEGLIGENCE CLAIMS (COA Nos. 16-17)

Cause of Action No. 16 invokes Labor Code sections 3706 and 6403 and depends, at least in material part, on an employer-employee relationship. Because a triable issue remains as to Plaintiff's status, summary adjudication of Cause of Action No. 16 is **DENIED**.

Cause of Action No. 17 alleges general negligence and does not depend exclusively on an employer-employee relationship. Defendants contend that Plaintiff was an independent contractor and that the Privette doctrine bars the claim. If Plaintiff proves that he was Defendants' employee, Privette does not supply a basis for eliminating an ordinary negligence claim. Even if Plaintiff was an independent contractor, however, the evidence raises a triable issue concerning the retained-control exception. Under *Hooker v. Department of Transportation* (2002) 27 Cal.4th 198, 202, a hirer may be liable when it retains control over safety conditions, actually exercises that retained control, and its exercise affirmatively contributes to the worker's injury. Plaintiff offers evidence that Ana Prado directed him to move the couch using only one helper despite his statement that he needed additional assistance. If credited, that evidence could support a finding that Defendants exercised retained control in a manner that affirmatively contributed to the injury. The MSA is therefore **DENIED** as to Cause of Action No. 17.

THE MOTION FOR SUMMARY ADJUDICATION OF PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES IS GRANTED

On summary adjudication, the Court considers Plaintiff's ultimate burden to prove malice, oppression, or fraud by clear and convincing evidence. (Civ. Code, § 3294, subd. (a).) "Clear and convincing" evidence requires a finding of high probability, leaving no substantial doubt and sufficiently strong to command the unhesitating assent of every reasonable mind. (In re Angelia P. (1981) 28 Cal.3d 908, 919.) Mere negligence, even gross negligence, does not by itself establish malice or oppression. (See *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894; *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.) Civ. Code Sect. 3294(a) *Beck v. State Farm Mut. Auto. Ins. Co.* (1976) 54 Cal.App.3d 347, 355

Civil Code section 3294 defines "malice" as conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Id., subd. (c)(2).) "Despicable" conduct is conduct so vile, base, or contemptible that ordinary decent people would look down upon and despise it; punitive damages require conduct rising to a level of extreme indifference to the plaintiff's rights. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210; see *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Sect. 3294(c)(1) CACI 3940, 3941 Sect. 3294(c)(2) *College Hosp., Inc. v. Sup.Ct.* (1994) 8 Cal.4th 704, 725

The FAC does not plead fraud or another intentional tort, and Plaintiff does not contend that Defendants intended to injure him. To recover punitive damages based on malice or oppression, Plaintiff therefore would have to prove by clear and convincing evidence that Defendants engaged in despicable conduct with the required conscious disregard. (Civ. Code, § 3294, subds. (c)(1)-(2).) Even viewing the evidence favorably to Plaintiff, the record does not support a reasonable finding meeting that standard. Sect. 3294(c)(1)

Plaintiff principally relies on testimony that, after the injury, Jose Prado did not summon help and allegedly stated that "the sofa is worth more than your body." (Plt.'s Dep. Tr. at 88.) If made, the statement was callous. But the punitive-damages inquiry concerns whether the evidence could establish despicable conduct undertaken with the statutory state of mind. The alleged post-injury statement does not establish conscious disregard of a known risk before or during the couch move. Plaintiff also testified that he did not seek medical attention until months later. (Plt.'s Dep. Tr. at 88, 138-139.) On this record, the evidence does not support punitive damages under the clear-and-convincing standard.

Accordingly, the MSA is **GRANTED** as to Plaintiff's request for punitive damages.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 2

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff Young Electric Co.'s Motion for Leave to File Second Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Plaintiff Young Electric Co.'s ("Young Electric") Motion for Leave to File Second Amended Complaint ("SAC") is **GRANTED**.

BACKGROUND

On June 17, 2022, Truebeck Construction, Inc. ("Truebeck"), as general contractor, entered into a contract with Defendant SL 750G, LLC to perform construction work at 750 Gateway Boulevard in South San Francisco (the "project"). Defendant SmartLabs was a tenant at the property, and Defendant BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, owns the property. Truebeck filed this lead action on March 28, 2024. This lead action has been consolidated with related matters, including Young Electric's action as a subcontractor that performed work on the project (San Mateo Superior Court Case No. 24CIV02352).

On June 26, 2024, Young Electric filed a verified First Amended Complaint to foreclose a mechanic's lien. Young Electric seeks leave to file the proposed verified SAC to: (1) correct an inadvertent error in the APN stated in the operative pleading and recorded mechanic's lien by substituting the correct APN 015-023-540; and (2) substitute SL 750G, LLC as a named defendant in place of Doe 1 based on discovery that it held a leasehold interest in the property and was not named in the First Amended Complaint.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit